



Tenant Rights and Obligations

Prepared for University of Windsor International Student Association
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Nazli Farahmand

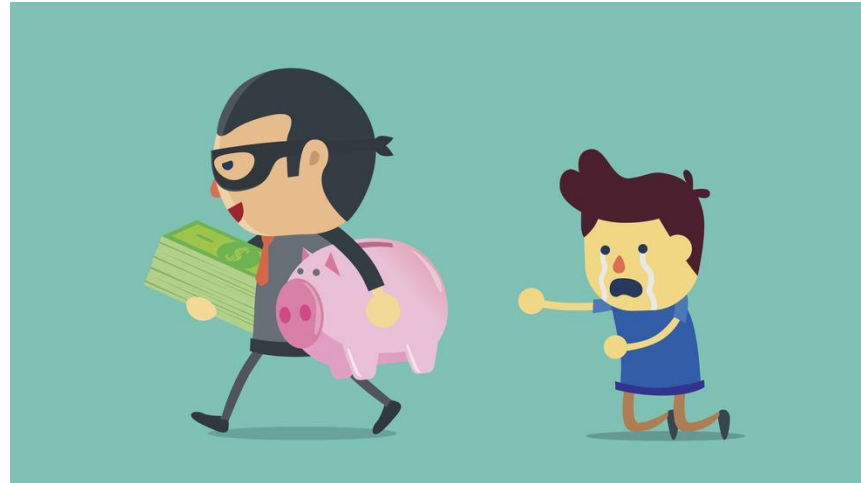
Today...

- Rental Scam
- *Residential Tenancy Act*
- The Landlord and Tenant Board (LTB)
- Tenancy Agreement
- Tenant Rights and Responsibilities
- Landlord Rights and Responsibilities
- Maintenance Issues
- Who Are Roommates?

Finding a Place



- Be aware of fraudulent advertisements



How to Protect Yourself



- Be aware of red flags.
 - Search the rental address on kijiji and craigslist to ensure it's not a duplicate post.
 - However, a duplicate post does not mean it is automatically a scam.
 - Scammer refuses showings.
- When searching for rentals, go to the address. Schedule a showing and confirm its availability.
- Before transferring the money to the landlord
 - Make sure the landlord is legitimate

- If you believe you have fallen victim to the “rental scam” Contact Windsor Police Service – 519-255-6700 ext. 4330.
- Anonymous tips can be made via Crime Stoppers at 519-258-8477 or www.catchcrooks.com.
- You can consider taking legal action against those involved in the fraud or scam.
 - Law Society Referral Service <https://lsrs.lsuc.on.ca/lsrs/> provides 30 minutes of free legal advice.

Residential Tenancies Act



- Ontario law.
- The “RTA”.
 - is the law that sets the rules for rent increases, evictions, repairs, and many other issues that affect tenants.

Residential Tenancies Act

- RTA does not always apply:
 - Student residence or dormitories;
 - Units that are used on a seasonal or temporary basis; or
 - Those sharing a kitchen or bathroom with their landlord or a member of the landlord's family



The Landlord and Tenant Board (LTB)

- Resolve disputes between landlords and tenants through mediation or adjudication
- Provide information to landlords and tenants about their rights and responsibilities.

The Landlord and Tenant Board (LTB)



Social Justice Tribunals Ontario

Providing fair and accessible justice

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Landlord and Tenant Board

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LANDLORD & TENANT
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Check File Status

LTB e-File

<http://www.sjto.gov.on.ca/ltb/>

Tenancy Agreement

- Lease agreement.
- Legal contract between you and your landlord.
- Read it carefully and make sure you understand it before signing it

Residential Tenancy Agreement (Standard Form of Lease)

Note

This tenancy agreement (or lease) is required for tenancies entered into on **April 30, 2018 or later**. It does not apply to care homes, sites in mobile home parks and land lease communities, most social housing, certain other special tenancies or co-operative housing (see Part A of General Information).

Residential tenancies in Ontario are governed by the *Residential Tenancies Act, 2006*. This agreement cannot take away a right or responsibility under the *Residential Tenancies Act, 2006*.

Under the Ontario *Human Rights Code*, everyone has the right to equal treatment in housing without discrimination or harassment.

All sections of this agreement are mandatory and cannot be changed.

1. Parties to the Agreement

Residential Tenancy Agreement between:

Landlord(s)

Landlord's Legal Name

Landlord's Legal Name

Note:

See Part B in General Information

and Tenant(s)

Last Name

First Name

Last Name

First Name

Last Name

First Name

Last Name

First Name

Last Name

First Name

2. Rental Unit

Tenancy Agreement

- Lease agreement can have additional terms
- Any terms that conflict with the law are invalid.
 - Invalid terms do not invalidate the lease agreement as a whole.





- Read the tenancy agreement carefully.
- Seek legal advice
- Keep a copy of the tenancy agreement.
 - Your landlord should provide the tenant with the copy of lease agreement within 21 days after the tenant signs
 - If landlord refused
 - the tenant can refuse to pay one month of rent.
 - Once the landlord provides the tenant with the document(s), the tenant must immediately pay all the rent that they withheld

Tenant Rights and Responsibilities

- Tenant is responsible for keeping the unit clean, up to the standard that most people consider ordinary or normal cleanliness
- Tenant could be evicted for putting the safety of the landlord or other tenants at risk.
 - The unit is so dirty that it attracts pests
 - The unit is so cluttered that it poses a fire hazard

Tenant Rights and Responsibilities

- Damages
 - The tenant is also responsible for repairing or paying for any undue damage to the rental property they caused or caused by their guests or another person living in the rental unit through willful or negligent conduct.
 - Does not include normal wear and tear



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Landlord Rights and Responsibilities

- It is the landlord's responsibility to maintain the unit in a good state of repair.
 - Electrical, plumbing or heating system
 - Appliances
 - Carpet in the unit or common areas
 - Walls, roofs, ceiling and more
- The landlord must follow all fire safety laws, property standard by-laws and building codes



When you have a pest or maintenance problem

- Keep pictures of the maintenance problem
- Put all requests for repairs to the landlord in writing and keep a copy for yourself
 - Text and emails
- Log the dates and times when the you spoke with the landlord



When you have a pest or maintenance problem

- Pest Control
 - The tenant should also cooperate with the landlord with entry and pest control preparation.



- If you don't cooperate...
 - The landlord can give the tenant notice to end the tenancy.
 - The notice provides the tenant with 7 days to allow entry and/or prepare for pest control.
 - The landlord can file an application for eviction.





- If you need to discard a piece furniture because it cannot be salvaged due to a pest problem.
 - You may be able to get compensation for it from LTB.

Value at the time of disposal!

1. Do not discard the furniture without a written opinion of licensed professional pest control operator
2. Inform your landlord in writing
3. Take pictures of the furniture before discarding it

Landlord Refusing to Make Repairs



- The landlord does not fix it within a reasonable time, the tenant can:
 - **Report the problem**
 - The tenant can contact the City of Windsor who can send a property standards inspector. That inspector can communicate with the landlord and order the landlord to fix the problem if it violates the City property standards bylaw
 - **Apply to the LTB**
 - tenant can file an application with the LTB.



Do not withhold rent

- A tenant should not withhold any part of the rent, even if the tenant feels that maintenance is poor or a necessary repair has not been done.



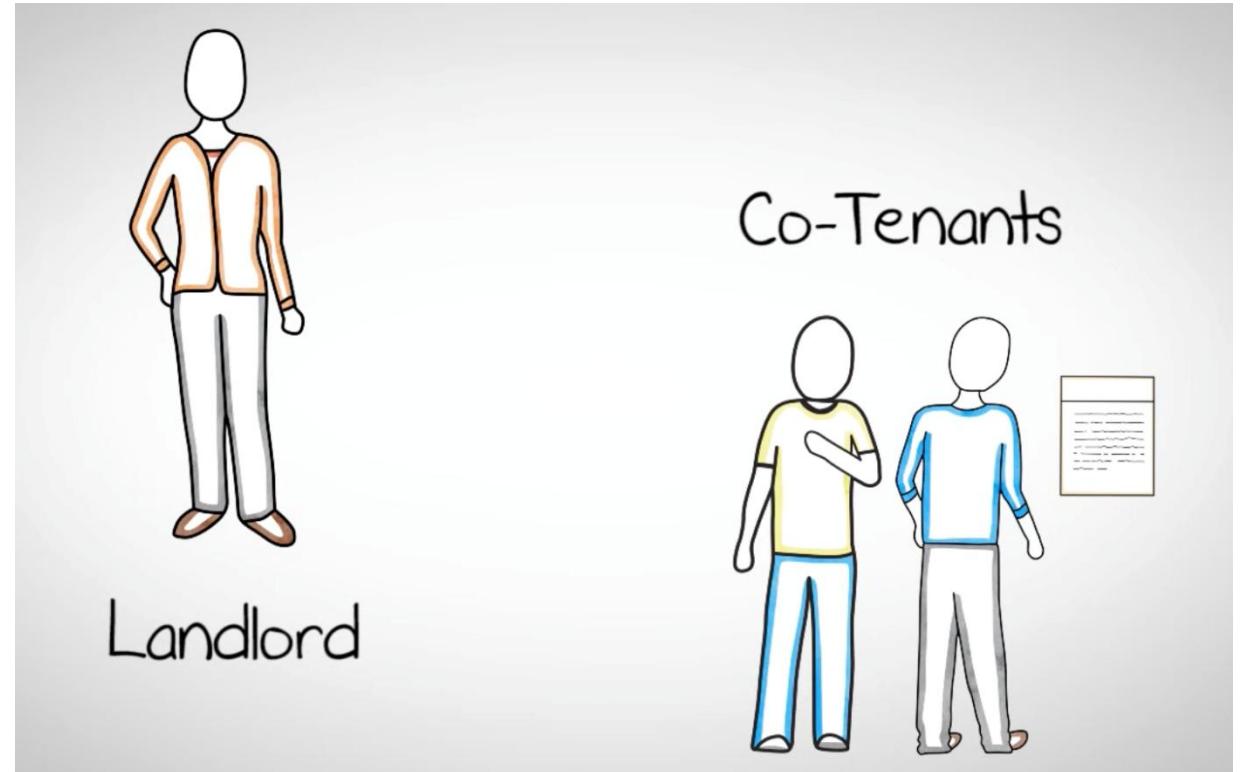
Who Are Roommates?

- No legal definition.
- A "roommate", depending on the circumstances, may be:
 - Joint tenants
 - Tenants in common
 - Subtenants
 - household/"family" members
 - Guest of the tenants



Joint Tenants

- Also known as co-tenants
- Sign a single tenancy agreement with the landlord
 - Oral agreement/written agreement



Joint Tenants

- Equal interest in the property.
 - Meaning that each has an equal right to the property without being restricted to a specific part of it

Joint Tenants

- Jointly responsible for all conditions of the tenancy
 - Together responsible for the full rent, as well as any damage that they cause
 - If the full rent isn't paid on time, the landlord could make everyone move out, and could also take legal action against any or all of the roommates

Joint Tenants

- Jointly responsible for all conditions of the tenancy
 - Everyone is responsible for any undue damages to the property and pest control preparation
 - If one of the roommates did not cooperate, the landlord could also take legal action against any or all of the roommates

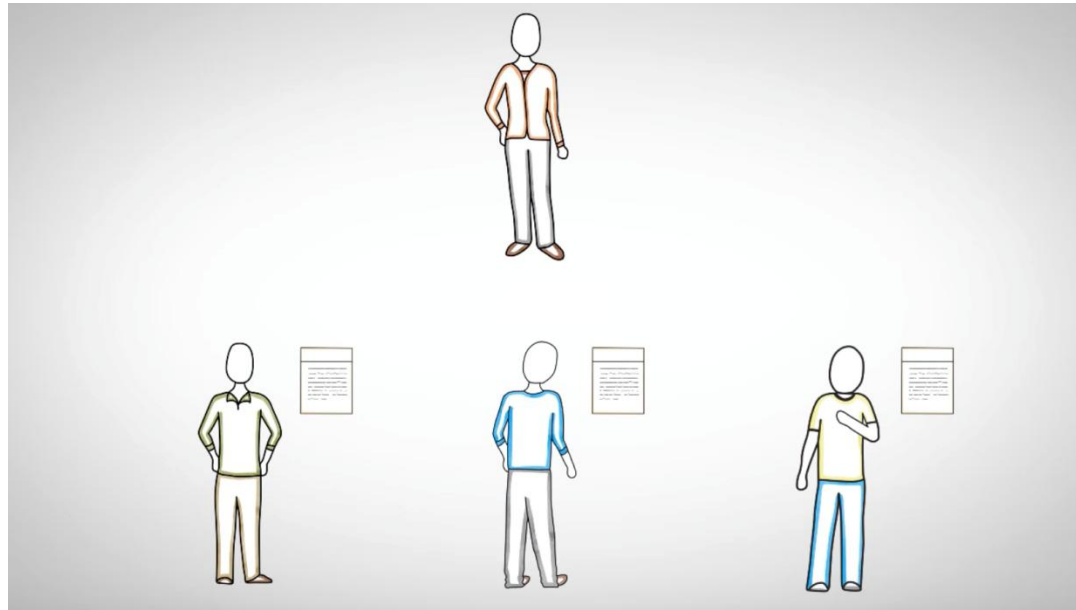


Joint Tenants

- If you have any problems with your co-tenants
 - The landlord does not have any responsibilities to resolve any issues between co-tenants
 - Any monetary issues can be settled through court

Tenancy in Common

- Tenants who live in the same rental unit, but have separate tenancy agreements with the landlord



Tenancy in Common

- In tenancy in common you do not have an equal interest in the property.
 - You do not have full access to all areas of the property



Tenancy in Common

- You are only responsible for your own behavior
 - If another tenant fails to pay their rent it has no effect on your tenancy
 - If another tenant damages the property, you don't have any responsibilities towards the landlord

Summary

- Read the lease agreement carefully before signing it.
- Seek legal advice.
- Ask for a copy of the agreement contract.
- Pay your rent on time.
- Ask for receipts of payments.
- keep your unit clean
- Repair any damage to the rental property caused by you or your guests.
- You have a right to privacy.
- Communicate with your landlord in writing and keep documentation of correspondence.

Educate Yourself



<http://www.sjto.gov.on.ca>



There is help out there

Community Legal Aid

443 Ouellette Avenue, Suite 200 Windsor, Ontario N9A 4J2

Tel: 519.253.7150



443 Ouellette Avenue, Suite 200

Windsor, Ontario N9A 4J2

Tel: 519.256.7831



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